



POLICE DEPARTMENT

October 5, 2022

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2021-24349
Detective Trent Narra	:	
Tax Registry No. 918056	:	
Emergency Services Squad 7	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Rosemarie Maldonado
Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Claudia Avin, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Marissa Gillespie, Esq.
Karasyk & Moschella, LLP
233 Broadway, Suite 2340
New York, NY 10279

To:

HONORABLE KEECHANT L. SEWELL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

CHARGES AND SPECIFICATIONS

1. Detective Trent Narra, on or about October 29, 2019, at approximately 0530, while assigned to ESS 07 and on duty, in the vicinity of [REDACTED] New York County, intentionally used force in that he struck [Complainant] with a police shield without police necessity, attempting to cause injury to [Complainant]

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

Penal Law §§ 110/120.00

ATTEMPTED ASSAULT IN THE
THIRD DEGREE

Before the tribunal is Respondent's Motion to Dismiss ("Motion") dated August 31, 2022, and the response of the Civilian Complaint Review Board ("CCRB") dated September 9, 2022 ("Response"). Having carefully reviewed these submissions, including the arguments and legal authorities contained therein, the tribunal, for the reasons set forth below, recommends that Respondent's Motion be granted and the sole specification be Dismissed.

Factual Background

It is undisputed that on October 29, 2019, Respondent and other members of the Emergency Services Squad forcibly entered [REDACTED] at approximately 0530 hours, pursuant to a search warrant. The subject of the warrant was [REDACTED] Person A who was ultimately arrested at the above location for criminal firearm possession and second degree assault; also inside the apartment was Person A's cousin, [Complainant]. It is further undisputed that Respondent, equipped with a ballistic shield, entered the bedroom in which [Complainant] was staying and that the shield made physical contact with [Complainant]. (Motion at 2; Response at 1)

Respondent maintains that he used the shield to pin [Complainant], who was balling his fists and moving away from officers, against the bed. CCRB was made aware of the incident after Respondent's Commanding Officer reported the use of force to the IAB Command Center

pursuant to Department policy. In its response, CCRB asserts that Respondent entered the bedroom and “struck” Complainant in the head with the ballistic shield while he was still laying in bed. (Motion at 2-3, Response at 1)

Typically, CCRB would have had eighteen months to serve Respondent with charges with the statute of limitations expiring on April 29, 2021. Due to the COVID-19 emergency, the Governor signed Executive Order No. 202.8, which “tolled” “any specific time limit for the commencement, filing or service of any legal action...” from March 20, 2020 through November 3, 2020. This Executive Order extended CCRB’s deadline for serving charges to December 13, 2021.¹ On November 18, 2021, before the expiration of the extended statute of limitations, a panel of CCRB’s Board substantiated the use of force allegation, and recommended charges and specifications for Respondent. On April 15, 2022, nearly two and a half years after the incident and four months after the extended statute of limitations deadline, CCRB served Respondent with a single specification, alleging that Respondent “intentionally used force in that he struck Complainant with a police shield, without police necessity, attempting to cause injury to Complainant.” CCRB maintains that the charge “if proven” in a New York State criminal court would constitute the crime of Attempted Assault in the Third Degree (Penal Law §§ 110, 120.00), thus satisfying the crimes exception to the statute of limitations established by Civil Service Law § 75(4) (hereinafter the “Criminal Exception”).

Respondent seeks to dismiss the charged specification arguing that CCRB has inappropriately attempted to charge a routine Patrol Guide use of force allegation as an attempted

¹ The tribunal takes judicial notice that guidance provided by the New York City Law Department to City agencies was that any pending filing or service deadlines running on March 20, 2020, began running again as of November 4, 2020 with whatever time had been remaining on March 20, 2020.

crime, and contends that the charge fails to make out a prima facie case of attempted assault in the third degree.

Standard of Review

The purpose of a pre-trial motion to dismiss is to make the court aware of a defect in the charges or the proceeding that would render the proceeding invalid or moot, including a jurisdictional defect (*see* CPLR § 3211[a]; Civil Service Law § 75[4]; 38 RCNY § 15-03[g]). Where properly asserted, the tribunal must “liberally construe the complaint” and “accept as true the facts alleged in the complaint and any submissions in opposition to the dismissal motion” (*Dep’t of Education v. Oliver*, OATH Index No. 1889/13 at 6 [June 18, 2013]). The motion must be denied if the prosecuting authority “has asserted a set of facts that, if proven, would subject respondent to liability” (*Id.*; *see Disciplinary Case No. 2018-19274*² [Aug. 19, 2019] (denying respondent’s pretrial motion to dismiss charges and specifications as time-barred where the charges of Strangulation in the First Degree and Assault in the Third Degree were sufficiently particularized and “conform[ed] to the requirements of the crimes exception clause set forth in Civil Service Law Section 75”), affirmed *Pantaleo v. O’Neill*, 192 A.D.3d 598 [2021]).

Analysis

The carve-out for crimes under Civil Service Law § 75(4) is an exception to the jurisdictional statute of limitations in disciplinary matters, not a substitute for the timely service of Charges and Specifications. While the tribunal acknowledges that courts in Article 78 proceedings look to the words of the charge to determine whether the Criminal Exception applies, in order to support a finding of guilt at trial, this tribunal requires proof by a

² CCRB claimed that Respondent’s reliance on this case was “misplaced” because the decision was post-trial and based on evidence. While it is true that the matter did ultimately result in a full trial and a subsequent decision, Respondent quoted from the decision on a pretrial motion to dismiss that invoked questions of whether the crime exception was applicable. The motion decision was ultimately incorporated in full into the final trial decision.

preponderance of the evidence as to each element of the crime alleged. Without such a requirement, the exception would swallow the rule, since parties could simply mirror the operative language of a crime to overcome the statute of limitations, yet, at trial, proceed with proof of an ordinary disciplinary matter (*see Dep't of Education v. Oliver*, OATH Index No. 1889/13 at 5 [“This tribunal has eschewed attempts to ‘circumvent the application of the statute of limitations simply by drafting . . . pleadings in a way which mirrors the Penal Law elements of crimes, without regard to what [the] evidence would actually show.’”], *quoting Human Resources Admin. v. Man of Jerusalem*, OATH Index No. 936/90 at 16 [Aug. 2, 1990]). Earlier, this year, this tribunal held that “it would further contravene basic principles of due process to permit a party to assert the Criminal Exception in a conclusory manner many [months] after the expiration of the 18-month statute of limitations without reasonable pre-trial notice of its basis for proceeding in such a delayed manner.” (*Disciplinary Case No. 2018-19734* [April 4, 2022]) Here, the tribunal finds that CCRB has done exactly that, invoking the crimes exception in a manner that is wholly conclusory.

Penal Law section 110 (Attempt to Commit a Crime) reads, “A person is guilty of an attempt to commit a crime when, with intent to commit a crime, he engages in conduct which tends to effect the commission of such crime.” Penal Law section 120.00(1) (Assault in the Third Degree) reads: “A person is guilty of assault in the third degree when, [w]ith intent to cause physical injury to another person, he causes such injury to such person or to a third person” Finally, Penal Law §15.05(1) sets forth that, “A person acts intentionally with respect to a result or to conduct described by a statute defining an offense when his conscious objective is to cause such result or to engage in such conduct.”

The words contained in CCRB's charge allege that Respondent "intentionally used force in that he struck [Complainant] with a police shield without police necessity, attempting to cause injury to [Complainant]. Accordingly, the operative words of the Penal Law -- "intentionally," "attempting," and "cause injury," are reflected in the charge. Nevertheless, CCRB's charge does not allege, as a criminal complaint would, factual allegations that establish "reasonable cause" for their belief that Respondent committed the offense. Charging instruments must have a reasonable basis in fact (Civil Service Law § 75[4] ["alleged incompetency or misconduct complained of and described in the charges"] [emphasis added]; cf. *People v Franklin*, 72 Misc 3d 537, 545 [Crim Ct, Bronx County 2021] ["[T]he accusatory instrument must provide 'reasonable cause to believe that the [accused] committed the offenses charged.'"]) While the depth of factual details contained in a criminal complaint are unusual in a disciplinary charge, where, as here, the charge is challenged, and more so in the context of a challenge to a Criminal Exception charge, it is incumbent upon the prosecuting authority to allege facts that, if proven, would subject respondent to liability. This burden may not be met merely with allegations of a conclusory and speculative nature, but only upon allegations having a concrete basis in fact.

Accepting the material facts as alleged by CCRB, the tribunal finds that CCRB, as a matter of law, has failed to allege a basis upon which the tribunal could reasonably find that Respondent acted "intentionally," as that term is used and understood in connection with an attempted criminal assault. In its response brief, CCRB set forth the following theory of its case as to Respondent's state of mind:

Respondent's counsel points out that Respondent did not 'tend to effect the commission of assault, as it was intended to control [Complainant] thereby somehow absolving him of culpability. Simply because Respondent 'fully believed' that he had sufficient authority to strike [Complainant] with his shield does not absolve him of misconduct. Respondent's belief (good faith or not) was wrong and based upon his 23 years of training and experience, he should have exercised better judgment.

(Response at 3).

Questions of whether Respondent could have exercised better judgment based on his training and experience are questions resolved in a Patrol Guide force analysis; they do not resolve the question of whether Respondent's conduct was intentional or satisfies the Penal Law definition of attempt. CCRB seems to engage in circular reasoning, asking the tribunal to find that because CCRB used certain operative words in the charge, the conduct therefore must constitute the crime alleged. This tribunal cannot and will not set a precedent that allows parties to circumvent the statute of limitations by making unsupported and entirely conclusory allegations of criminal elements to pursue an otherwise time-barred Patrol Guide violation charge.

Accordingly, as CCRB has failed to allege any particularized facts tending to show that Respondent acted "with intent to cause injury" and/or "engage[d] in conduct which tends to effect the commission of" attempted assault in the third degree, this tribunal recommends that Respondent's Motion to Dismiss be granted and the sole specification in Disciplinary Case No. 2021-24349 be Dismissed.

Respectfully submitted,

/s/ Rosemarie Maldonado

Rosemarie Maldonado
Deputy Commissioner Trials

BY FHG

APPROVED

[Signature]
OCT 20 2022
KEECHANT L. SEWELL
POLICE COMMISSIONER